

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                     |                            |                                                        |                                               |                                 |
|--------------------------------------------------|-------------------------------------|----------------------------|--------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Robert Bryan                    | Team:<br>Squad #02                  | CCRB Case #:<br>201902807  | <input type="checkbox"/> Force                         | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                     |                            | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Monday, 03/25/2019 3:38 PM   | Location of Incident:<br>§ 87(2)(b) | 18 Mo. SOL<br>5/12/2021    | Precinct:<br>62                                        |                                               |                                 |
| Date/Time CV Reported<br>Tue, 03/26/2019 4:10 AM | CV Reported At:<br>IAB              | How CV Reported:<br>E-mail | Date/Time Received at CCRB<br>Mon, 04/01/2019 11:41 AM |                                               |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. POF Regina Labruzzo | 13729  | 966145 | 062 PCT |

| Witness Officer(s)     | Shield No | Tax No | Cmd Name |
|------------------------|-----------|--------|----------|
| 1. POM Christian Rojas | 09835     | 947843 | 062 PCT  |

| Officer(s)              | Allegation                                                                               | Investigator Recommendation |
|-------------------------|------------------------------------------------------------------------------------------|-----------------------------|
| A . POF Regina Labruzzo | Abuse: Police Officer Regina Labruzzo questioned § 87(2)(b)                              | A . Exonerated              |
| B . POF Regina Labruzzo | Abuse: Police Officer Regina Labruzzo took a photograph of § 87(2)(b) s ID.              | B . Unsubstantiated         |
| C . POF Regina Labruzzo | Discourtesy: Police Officer Regina Labruzzo spoke discourteously to § 87(2)(b)           | C . Unsubstantiated         |
| D . POF Regina Labruzzo | Abuse: Police Officer Regina Labruzzo refused to provide her name to § 87(2)(b)          | D . Unsubstantiated         |
| E . POF Regina Labruzzo | Abuse: Police Officer Regina Labruzzo refused to provide her shield number to § 87(2)(b) | E . Unsubstantiated         |

### Case Summary

On March 26, 2019, § 87(2)(b) called IAB via 311 to file the following complaint. The complaint was received by the CCRB on April 1, 2019.

At approximately 3:38 p.m. on March 25, 2019, Police Officer Regina Labruzzo and Police Officer Christian Rojas of the 62<sup>nd</sup> Precinct responded to a 911 call from § 87(2)(b) about a cell phone he had found under the tire of his car in the front yard of his house at § 87(2)(b) in Brooklyn. Police Officer Labruzzo asked § 87(2)(b) for his ID (**Allegation A – Abuse of Authority – Question; exonerated**) and when he handed it to her, she allegedly took a photograph of it (**Allegation B – Abuse of Authority – Photography/Videography; unsubstantiated**). § 87(2)(b) said he planned to make a complaint, and Police Officer Labruzzo allegedly responded, “Go ahead, make a fucking complaint” (**Allegation C – Discourtesy – Word; unsubstantiated**). § 87(2)(b) asked Police Officer Labruzzo for her “information,” but she allegedly did not provide her name or shield number (**Allegation D – Abuse of Authority – Refusal to Provide Name; unsubstantiated**) (**Allegation E – Abuse of Authority – Refusal to Provide Shield Number; unsubstantiated**). No one was summonsed or arrested.

No video footage was found of the incident.

### Findings and Recommendations

#### Allegation (A) Abuse of Authority: Police Officer Regina Labruzzo questioned § 87(2)(b)

On April 5, 2019, § 87(2)(b) provided a telephone statement to the CCRB (Board Review 01). On May 6, 2019, § 87(2)(b) and his wife § 87(2)(b) were interviewed at the CCRB. On May 30, 2019, Police Officer Labruzzo was interviewed at the CCRB. On July 10, 2019, Police Officer Rojas was interviewed at the CCRB.

§ 87(2)(b) stated that Police Officer Rojas directed Police Officer Labruzzo to request his ID, so Police Officer Labruzzo asked to see his ID and he handed it to her.

Police Officer Labruzzo said that either she or Police Officer Rojas asked for § 87(2)(b)'s ID because when officers voucher found property, they need to note who provided it to them. Police Officer Labruzzo could not recall whether she asked for the ID or whether Police Officer Rojas did, or to whom § 87(2)(b) handed his ID.

Police Officer Rojas said that either he or Police Officer Labruzzo asked § 87(2)(b) for his ID. He could not recall if § 87(2)(b) handed his ID to him or Police Officer Labruzzo.

It is undisputed that § 87(2)(b) provided his ID to either Police Officer Labruzzo or Police Officer Rojas, but neither officer could recall who asked for his ID. However, because § 87(2)(b) clearly stated that Police Officer Labruzzo was the officer who asked for his ID, a preponderance of the evidence suggests that Police Officer Labruzzo questioned § 87(2)(b).

NYPD Patrol Guide Procedure 218-26 states that upon coming into possession of found property, officers must prepare a Property Clerk Invoice and issue a receipt to the person delivering the property if that person is not a member of service (Board Review 02).

According to People v. Thomas, 19 A.D.3d 32 (2005), an officer's request for a civilian's license must be justified by an objective, credible reason that is not necessarily indicative of criminality (Board Review 03).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be **exonerated**.

**Allegation (B) Abuse of Authority: Police Officer Regina Labruzzo took a photograph of § 87(2)(b)'s ID.**

§ 87(2)(b) stated that when he handed his ID to Police Officer Labruzzo, she took a picture of it with her phone before handing it back.

Police Officer Labruzzo could not recall whether she took a photograph of the ID, but said that it was "not usually" common procedure to take a photograph of an ID for the purposes of completing a property voucher. She could not think of any circumstances in which she would take a photograph of an ID while vouchering property.

Police Officer Rojas could not recall if Police Officer Labruzzo took a photograph of § 87(2)(b)'s ID.

§ 87(2)(g)

§ 87(2)(b)'s ID. It is therefore recommended that **Allegation B** be **unsubstantiated**.

**Allegation (C) Discourtesy: Police Officer Regina Labruzzo spoke discourteously to § 87(2)(b)**

§ 87(2)(b) stated that he told Police Officer Labruzzo and Police Officer Rojas that he wanted to make a complaint about them, and that Police Officer Labruzzo replied, "Go ahead, make a fucking complaint."

§ 87(2)(b) who was present for the incident, said that Police Officer Labruzzo and Police Officer Rojas seemed to "brush off" her husband's complaint, but did not mention either officer using profanity.

Police Officer Labruzzo stated she never made this statement and never used profanity at any point during the incident.

Police Officer Rojas corroborated Police Officer Labruzzo's account and said that neither he nor Police Officer Labruzzo used profanity.

§ 87(2)(g)

it is recommended that **Allegation C** be **unsubstantiated**.

**Allegation (D) Abuse of Authority: Police Officer Regina Labruzzo refused to provide her name to § 87(2)(b)**

**Allegation (E) Abuse of Authority: Police Officer Regina Labruzzo refused to provide her shield number to § 87(2)(b)**

§ 87(2)(b) stated that he asked Police Officer Labruzzo for her "information," but she did not respond in any way or provide any identifying information. He never asked her specifically for a name or shield number, and he did not ask for Police Officer Rojas' information.

Police Officer Labruzzo did not recall § 87(2)(b) asking her for her name or shield number.

Police Officer Rojas said that he believed § 87(2)(b) asked both him and Police Officer Labruzzo for their names and/or shield numbers, but could not recall the exact nature of his request and whether he asked for names, shield numbers, or both. He did not recall if Police Officer Labruzzo responded verbally to this request, but remembered seeing her point to her shield number.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations D and E** be **unsubstantiated**.

#### **Civilian and Officer CCRB Histories**

- § 87(2)(b) has been a party to one other CCRB complaint and has been named as a victim in two allegations (Board Review 04).

§ 87(2)(b)

- Police Officer Labruzzo has been a member of service for one year, and this is the first CCRB allegation to which she has been a subject.

## Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- A Notice of Claim search request was sent to the New York City Comptroller's office on August 13, 2019. The results will be added to the case upon receipt.

## Squad 2

Investigator: \_\_\_\_\_

Signature \_\_\_\_\_ Print Title & Name \_\_\_\_\_ Date \_\_\_\_\_

Squad Leader: \_\_\_\_\_

|           |                    |      |
|-----------|--------------------|------|
| Signature | Print Title & Name | Date |
|-----------|--------------------|------|

Reviewer: \_\_\_\_\_

Signature \_\_\_\_\_ Print Title & Name \_\_\_\_\_ Date \_\_\_\_\_